

IN THE COURT OF THE LEARNED THE LEARNED
METROPOLITAN MAGISTRATE / SESSIONS JUDGE

STATE vs. RAVI KUMAR [NON-BAILABLE]

FIR No.: FIR/2024/001 | Police Station: -- | Sections: BNSS Section 187

3. APPLICATION CLAUSE

Most respectfully sheweth that the present application is being filed on behalf of Ravi Kumar, the accused/applicant in the above-captioned matter (FIR No. FIR/2024/001), under Section 437 and Section 187 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS), the charge sheet having not been filed within the mandatory 90-day period. The applicant is currently in judicial/police custody and seeks bail/default bail on the grounds set out hereunder.

4. BRIEF FACTS

That Ravi Kumar was arrested on an unknown date by the concerned police station in connection with FIR No. FIR/2024/001. Since the date of arrest, the applicant has been in continuous judicial/police custody for approximately 917 day(s).

That The charge sheet has NOT been filed in this matter as of the date of this application.

5. GROUNDS FOR BAIL

- (1) Section 187 BNSS: Charge sheet not filed within the 90-day statutory limit -- default bail eligibility triggered regardless of offence gravity
 - (2) That even in cases involving non-bailable offences, Section 187 BNSS confers an indefeasible right to default bail where the charge sheet is not filed within the mandatory 90-day period. This right cannot be curtailed on account of the gravity of the alleged offence (Ref: Satender Kumar Antil v. CBI, 2022 SCC).
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6. PERIOD OF CUSTODY

That Ravi Kumar has been in continuous custody since --, amounting to 917 day(s) as on the date of this application.

That the statutory deadline for filing the charge sheet under Section 187 BNSS was 90 days. The said deadline has been exceeded by 827 day(s) without any charge sheet being filed, entitling the applicant to default bail as a matter of right.

7. PRAYER

It is, therefore, most humbly prayed that this Hon'ble Court may be pleased to:

- (i) grant default bail to Ravi Kumar forthwith under Section 187 BNSS, the charge sheet having not been filed within the mandatory 90-day statutory

period, rendering continued detention unlawful;

(ii) in the alternative, if default bail is not granted, release the applicant on such bail and such terms and conditions as this Hon'ble Court may deem fit and proper in the circumstances of the case;

(iii) pass any other order or direction as this Hon'ble Court may deem fit and proper in the interest of justice.

And for this act of kindness the applicant shall ever pray.

8. UNDERTAKING

The applicant/accused hereby undertakes that, if released on bail:

(i) He/She shall not directly or indirectly make any inducement, threat, or promise to any person acquainted with the facts of the case, and shall not tamper with evidence in any manner.

(ii) He/She shall not leave the jurisdiction of this Court without prior written permission of this Hon'ble Court.

(iii) He/She shall appear before the concerned police station/court on every date of hearing and whenever so directed.

(iv) He/She shall surrender his/her passport, if any, to this Hon'ble Court.

9. VERIFICATION & SIGNATURE

I, Ravi Kumar, do hereby verify that the contents of the foregoing application in FIR No. FIR/2024/001 are true and correct to the best of my knowledge and belief and nothing material has been concealed therefrom.

Deponent / Petitioner

Counsel for the Applicant

Ravi Kumar (Signature / Thumb
Impression)

(Advocate's Signature)

Place: _____

Date: _____ Name: _____ Bar Council
Enrolment No.: _____ Mobile:

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